

26STCV03159 26STCV03159

County: los-angeles

Division: Civil Law and Motion

Department: 733

Hearing date: 2026-08-19

Motion: DEFENDANT KAISER FOUNDATION HEALTH PLAN, INC.'S (ERRONEOUSLY SERVED AND SUED AS KAISER FOUNDATION HOSPITALS SOUTHERN CALIFORNIA PERMANENTE MEDICAL GROUP)'s DEMURRER WITH MOTION TO STRIKE

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Case Number: 26STCV03159 Hearing Date: August 19, 2026 Dept: 733

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

CHUNG

YOUNG CHANG,

Plaintiff,

vs.

KAISER FOUNDATION HOSPITALS SOUTHERN CALIFORNIA PERMANENTE
MEDICAL GROUP,

Defendants.

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CASE NO.: 26STCV03159

[TENTATIVE] ORDER RE: DEFENDANT KAISER
FOUNDATION HEALTH PLAN, INC.'S (ERRONEOUSLY SERVED AND SUED AS KAISER
FOUNDATION HOSPITALS SOUTHERN CALIFORNIA PERMANENTE MEDICAL GROUP)'s DEMURRER
WITH MOTION TO STRIKE

Dept. 733

8:30 a.m.

August 19, 2026

I.

INTRODUCTION

On January 30,
2026, Plaintiff Chung Young Chang ("Plaintiff") initiated this action

against Defendant Kaiser Foundation
Hospitals Southern California Permanente Medical Group ("Defendant").

On

March 30, 2026, Plaintiff filed a first amended complaint ("FAC") against
Defendant, alleging causes of action for (1) Medical Malpractice, (2) Lack of
Informed Consent, (3) Medical battery, (4) False Imprisonment, (5) Corporate
Negligence, and (6) Fraud and Concealment.

Plaintiff

alleges that Defendant conducted invasive medical procedures without Plaintiff's consent, including an unauthorized open-heart surgery.

On

May 6, 2026, Defendant Kaiser Foundation Health Plan, Inc. (erroneously served and sued as Kaiser Foundation Hospitals Southern California Permanente Medical Group) filed the instant demurrer with motion to strike.

On

July 31, 2026, Plaintiff filed an opposition.

On

August 12, 2026, Defendant filed a reply.

II.

LEGAL STANDARD

Demurrer

A demurrer is an objection to a pleading, the grounds for which are apparent from either the face of the complaint or a matter of which the court may take judicial notice. (Code Civ. Proc., § 430.30, subd. (a); see also *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The purpose of a demurrer is to challenge the sufficiency of a pleading "by raising questions of law." (*Postley v. Harvey* (1984) 153 Cal.App.3d 280, 286.) "In the construction of a pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties." (Code Civ. Proc., § 452.) The court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law" (*Berkley v. Dowds* (2007) 152 Cal.App.4th 518, 525.)

When a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (*Ibid.*; *Lewis v. YouTube, LLC* (2015) 244 Cal.App.4th 118, 226.)

Motion to Strike

Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike a pleading or any part thereof. (Code Civ. Proc., § 435, subd. (b)(1).) The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436, subd. (a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with California law, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (b).) An immaterial or irrelevant allegation is one that is not essential to the statement of a claim or defense; is neither pertinent to nor supported by an otherwise sufficient claim or defense; or a demand for judgment requesting relief not supported by the allegations of the complaint. (Code Civ. Proc., § 431.10, subd. (b).) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc., § 437.)

III.

DISCUSSION

Defendant demurs to the entirety of the FAC on the ground that each cause of action is barred by the applicable statute of limitations.

The applicable statutes of limitations for medical negligence and lack of informed consent is “three years after the date of injury or one year after the plaintiff discovers, or through the use of reasonable diligence should have discovered, the injury, whichever occurs first.” (Code Civ. Proc., § 340.5) The applicable statutes of limitations for medical battery and “corporate negligence” is two years. (Id. § 335.1.) The applicable statute of limitations for false imprisonment is one year. (Id. § 340(c).) The applicable statute of limitations for fraudulent concealment is three years. (Id. § 338(d).)

Here, Plaintiff

alleges that “following [the unauthorized open-heart] surgery, Plaintiff developed post- “surgical complications in the left leg, including discharge of pus.” (FAC ¶ 32.) “Between October 5, 2021 and October 27, 2021, plaintiff informed the defendants through their medical portal about an infection in the left leg and the need for assistance, but was denied help.” (Id. ¶ 34.) “On November 18, 2022, a medical assessment confirmed that the plaintiff had

sustained an injury to his left leg, following the surgery, the plaintiff developed a postoperative infection in the left leg, with pus emanating from the wound with nerve damage.” (Id. ¶ 33.) Plaintiff also alleges that on February 8, 2023, he “discovered that multiple consent forms contained — forged or unauthorized signatures.” (Id. ¶ 2.)

“ ‘A demurrer on the ground of the bar of the statute of limitations will not lie where the action may be, but is not necessarily barred.’ [Citations.] It must appear clearly and affirmatively that, upon the face of the complaint, the right of action is necessarily barred. [Citations.] This will not be the case unless the complaint alleges every fact which the defendant would be required to prove if he were to plead the bar of the applicable statute of limitation as an affirmative defense. [Citation.]” (Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort (2001) 91 Cal.App.4th 875, 881.)

“The statute of limitations usually commences when a cause of action ‘accrues,’ and it is generally said that ‘an action accrues on the date of injury.’ [Citation.] Alternatively, it is often stated that the statute commences ‘upon the occurrence of the last element essential to the cause of action.’ ” (Bernson v. Browning–Ferris Industries (1994) 7 Cal.4th 926, 931.) “These general principles have been significantly modified by the common law ‘discovery rule,’ which provides that the accrual date may be ‘delayed until the plaintiff is aware of her injury and its negligent cause.’ ” (Ibid.) Now, under the discovery rule, “ ‘the statute of limitations begins to run when the plaintiff suspects or should suspect that her injury was caused by wrongdoing, that someone has done something wrong to her.’ ” (Id. at p. 932.)

Here, Plaintiff alleges that the actual medical care at issue occurred in (1) October 2020, when Plaintiff was “requested to fill the Medical Preference Consent Form” even though he “was unwilling to undergo surgery,” (2) in November 2020 when “Plaintiff was administered Morphine without explanation or consent.” (FAC ¶¶ 17, 22.) Following the surgery, in November 2022, Plaintiff officially discovered through a medical assessment that he had sustained injury to his left leg in the form of a postoperative infection “with pus emanating from the wound with nerve damage.” (Id. ¶ 22.) Plaintiff then alleges that he discovered Defendant actively forged his signature on multiple consent forms in February 2023. (Id. ¶ 2.)

Thus, even if the Court used the latest date of February 2023 as the accrual date for Plaintiff's claims, Plaintiff's causes of action for Medical Battery, Corporate Negligence, and False Imprisonment are facially time barred as the original complaint was filed on January 30, 2026, over two years later.

However, the Court finds Plaintiff's causes of action for Medical Negligence and Lack of Informed Consent to also be time-barred as the accrual date for these claims did not begin in February 2023 when Plaintiff allegedly discovered Defendant's forgery, but rather when Plaintiff became aware of his injuries.

The three-year period delineated in section 340.5 "commences when the plaintiff discovers the harmful effect, in other words, the physical manifestation of the wrongful act." (Allen v. Beard (S.D. Cal. Nov. 5, 2018) 2018 WL 5785274, at *4.) "The one-year period begins to run when (1) the injury physically manifests, and (2) the plaintiff is aware, or should be aware, of its negligent cause. An injury, in the context of a claim based on lack of informed consent, is the occurrence of an undisclosed complication or side effect of the procedure." (Ibid. (citation omitted).)

However, a claim for Medical Negligence must be timely under both periods. (Hills v. Aronsohn (1984) 152 Cal.App.3d 753, 758 ["Lest it appear, however, that the action is timely if the requirements of only one of these provisions is satisfied, the statute further requires that the action be brought within the limitation period which "occurs first." To make it even more evident that a plaintiff must satisfy the requirements of both provisions, the statute further provides that "[i]n no event shall the time for commencement of legal action exceed three years"].) "Thus, if a malpractice litigant brings her action within three years from the date of injury she must still satisfy the one-year limitations period or the action is time barred. Conversely, if the action is properly brought within one year of reasonable discovery, the action is nevertheless barred if the three-year period is not also satisfied." (Ibid.)

As stated above, Plaintiff alleges that "[f]ollowing surgery, Plaintiff developed post- "surgical

complications in the left leg, including discharge of pus" which was confirmed by medical assessment on November 18, 2022. Thus, Plaintiff became fully aware of this injury on this date but failed to file his claims within one year. (See *Gutierrez v. Mofid* (1985) 39 Cal.3d 892, 897, [holding when the patient's " 'reasonably founded suspicions [have been aroused],' and [he] has actually 'become alerted to the necessity for investigation and pursuit of [his] remedies' the one-year period for suit begins"]..)

Additionally, Plaintiff alleges that he began experiencing the injuries "between October 5, 2021 and October 27, 2021" when he "informed the defendants through their medical portal about an infection in the left leg and the need for assistance[.]" (FAC ¶ 34.) Plaintiff failed to file his claims within three years of this date. (*Ashworth v. Memorial Hospital* (1988) 206 Cal.App.3d 1046, 1054–105 [a plaintiff "must file within three years after she first experiences harm from the injury."].)

Furthermore, the alleged fact that Plaintiff's injuries may have persisted or that Plaintiff "discovered" his heart scar in April 2025 does not change when the claims accrue. (FAC ¶ 5; *Vaca v. Wachovia Mortg. Corp.* (2011) 198 Cal.App.4th 737, 745 ["The time bar starts running when the plaintiff first learns of actionable injury (Citation), even if the injury will linger or compound."].) "[W]here an injury, although slight, is sustained in consequence of the wrongful act of another, and the law affords a remedy therefor, the statute of limitations attaches at once. It is not material that all the damages resulting from the act shall have been sustained at that time, and the running of the statute is not postponed by the fact that the actual or substantial damages do not occur until a later date...." (Spellis v. Lawn (1988) 200 Cal.App.3d 1075, 1081; *Dolan v. Borelli* (1993) 13 Cal.App.4th 816, 823 ["When a plaintiff has information which would put a reasonable person on inquiry, when a plaintiff's 'reasonably founded suspicions [have been] aroused' and the plaintiff has 'become alerted to the necessity for investigation and pursuit of her remedies,' the one-year period commences. 'Possession of "presumptive" as well as "actual" knowledge will commence the running of the statute."].)

And while fraud is a statutory exception to the three-year limitation period, the exception "does not come into play, whatever the lengths to which a defendant has gone to conceal his

wrongs, if a plaintiff is on notice of a potential claim.' [Citation.]" (Rita M. v. Roman Catholic Archbishop (1986) 187 Cal.App.3d 1453, 1460.)

The demurrer is sustained in its entirety.

Given that the Court sustained Defendant's demurrer in its entirety, the motion to strike is denied as moot.

IV.

CONCLUSION

Based on the foregoing,
Defendant's demurrer is SUSTAINED in its entirety with thirty

(30) days leave to amend.

Defendant's motion to strike is
DENIED as moot.

Dated this 19th
day of August 2026

Hon. Gary D.
Roberts

Judge of the
Superior Court